



Holcim – Burdett's

MN-05044

Phase 1 Determination

Acquisition may be put into effect

10 September 2026

1. Determination and statement of reasons

Notified acquisition	Holcim (Australia) Pty Ltd (Holcim) proposed acquisition of the assets and business of Burdett Group Pty Ltd (Burdett's) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Holcim, is a Swiss multinational company that supplies building materials. In Australia, Holcim supplies sand and hard rock aggregates, ready-mix concrete (RMX), engineered concrete solutions and precast pipes. Relevant to the Acquisition, Holcim operates two sand quarries at Lang Lang and Grantville (a joint venture with Boral). In Victoria, Holcim supplies RMX under the 'Holcim' and 'VicMix' brands. The target, Burdett's, is a family operated business, supplying processed extractive sands along with soils and landscaping materials for customers in the South-East of Melbourne. Burdett's operates two sand quarries at Lang Lang and Hallston. Burdett's also operates an RMX plant in Langwarrin, Victoria.
Overlap and relationship between the Parties	Holcim and Burdett's both supply sand and hard rock aggregates in Southeast Victoria, and RMX in the local area surrounding Langwarrin. Sand and hard rock aggregates are used as inputs into RMX and other products such as glass.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • Holcim and Burdett's do not appear to be close competitors in the supply of sand, RMX and hard rock aggregates. • Holcim would continue to face competition from multiple alternative suppliers of sand and hard rock aggregates in the Southeast of Victoria, and multiple alternative suppliers of RMX in

	the area around Langwarrin. • Holcim would be unlikely to have the ability and incentive to foreclose rival RMX producers from access to sand and hard rock aggregates due to the presence of alternative suppliers, including a number of vertically integrated competitors. While the ACCC received some concerns from some market participants in relation to the effect of the Acquisition, the ACCC found that customers would continue to have access to competitive alternatives.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**